

RESOLUTION OF EXPIRATION OF PROCEEDINGS

From the actions carried out by the Spanish Agency for Data Protection and based on the following

FACTS

FIRST: On March 27, 2023, a complaint was filed with the Spanish Agency for Data Protection, with entry registration number REGAGE23e00020567590, against the Regional Health Management of Castilla y León (SACYL) (hereinafter, the accused party). The reasons for the complaint are as follows: The complaint was filed in relation to the management of the MEDORA system, an application that originated as a local application associated with each health center of SACYL and that has evolved into an interconnection system that constitutes the main tool and access point to the electronic medical record for healthcare and administrative personnel of Primary Care and other healthcare units of the Health Service of Castilla y León, such as the Units of Continuity of Care, Socio-Health Care, the INSS Inspection, and the Health Service itself, the Regional Center for Sports Medicine, the Emergency Health Management, and the personnel of the Palliative Care Plan, among others.

Furthermore, this MEDORA system, according to the complaint, covers the main and numerous needs for clinical tools in nursing, pediatrics, physiotherapy, or sports medicine. Currently, it communicates in real-time with more than forty systems such as automated appointment scheduling, patient folders, clinical data repositories, radiological rings, or computerized prescription and electronic prescriptions. According to the reported facts, the MEDORA application has been called into question due to weaknesses in its security and non-compliance with data protection regulations during the period from 2011 to 2017, as indicated in the complaint, which is evidenced in judgment No. 9/2023 of the Superior Court of Justice of Castilla y León, where a nurse was convicted for unauthorized access to a colleague's medical record through the aforementioned platform. According to the complaint itself, many of the security breaches revealed in court have not been corrected, or have only been corrected very recently.

SECOND: On May 26, 2023, the director of the Spanish Agency for Data Protection agreed to initiate ex officio preliminary investigation proceedings against the Regional Health Management of Castilla y León (SACYL), in order to analyze the implications, in terms of personal data protection, of the MEDORA application.

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THIRD: The General Subdirectorate of Data Inspection proceeded to carry out the preliminary investigation proceedings to clarify the facts in question, by virtue of the functions assigned to the control authorities in Article 57.1 and the powers granted in Article 58.1 of the GDPR, and in accordance with the provisions established in Title VII, Chapter I, Section Two, of the LOPDGDD, new lines of investigation emerged that would be advisable to clarify.

LEGAL GROUNDS

I

Competence

In accordance with the functions conferred on each control authority by Article 57.1 a), f) and h) of the GDPR and as provided in Articles 47 and 48.1 of the LOPDGDD, the Director of the Spanish Agency for Data Protection is competent to resolve these investigation proceedings.

Furthermore, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued for its development and, as long as they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

Preliminary investigation proceedings

Article 67 of the LOPDGDD establishes the following regarding preliminary investigation proceedings:

“1. Before adopting the agreement to initiate the procedure, and once the complaint has been admitted for processing, if any, the Spanish Agency for Data Protection may carry out preliminary investigation proceedings in order to achieve a better determination of the facts and circumstances that justify the processing of the procedure.

The Spanish Agency for Data Protection shall act in any case when it is necessary to investigate treatments involving massive traffic of personal data.

2. The preliminary investigation proceedings shall be subject to the provisions of Section 2 of Chapter I of Title VII of this organic law and may not exceed eighteen months from the date of the admission agreement or from the date of the agreement deciding its initiation when the Spanish Agency for Data Protection acts on its own initiative or as a result of communication sent to it by the control authority of another Member State of the European Union, in accordance with Article 64.3 of this organic law.”

III

Expiration of the proceedings

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In relation to the preliminary proceedings, the Regulation for the Development of the LOPD (RLOPD), approved by Royal Decree 1720/2007, of December 21, in force in all matters that do not contradict, oppose, or are incompatible with the provisions of the RGPD and the LOPDGDD, in its article 122.4 states that: “The expiration of the period without a decision being made and notified to initiate sanctioning proceedings will result in the expiration of the preliminary proceedings.”

According to the provisions of the transcribed articles, the preliminary proceedings must be understood as expired if, after more than eighteen months counted from the date of the agreement to initiate them, no decision has been made and notified to initiate sanctioning proceedings.

In the present case, the computation of the eighteen-month maximum duration of the preliminary proceedings began on May 26, 2023, and they are currently still pending completion, so they must be declared expired.

IV

Initiation of New Investigative Proceedings

On the other hand, article 95.3 of the aforementioned LPACAP states that:

“The expiration will not, by itself, produce the prescription of actions by the individual or the Administration, but expired procedures will not interrupt the prescription period.

In cases where it is possible to initiate a new procedure due to the absence of prescription, the acts and procedures whose content would have remained the same had the expiration not occurred may be incorporated into this new procedure. In any case, in the new procedure, the procedures for allegations, proposal of evidence, and hearing of the interested party must be completed.”

In this regard, the National Court, in its judgment of July 10, 2013 (JUR 2013\259250), considers that “the declaration of expiration of the preliminary investigative proceedings initiated by the Spanish Agency for Data Protection does not constitute any obstacle for that entity to initiate or restart other preliminary investigative proceedings on the same facts, as long as the prescription period for the administrative infringement under investigation has not elapsed.”

In the present proceedings, the investigation has proven to be a process of enormous complexity both from a technical point of view and due to the volume of documentation that must be analyzed and studied. Furthermore, new lines of investigation have emerged that need to be evaluated, so the initiated investigation must be completed with new complementary actions.

Consequently, since the facts under investigation are not prescribed, instructions are given to the General Sub-Directorate of Data Inspection to initiate new investigative proceedings.

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Therefore, in accordance with the aforementioned, the Director of the Spanish Agency for Data Protection AGREES:

FIRST: TO DECLARE the EXPIRATION of the present preliminary investigative proceedings.

SECOND: TO OPEN new investigative proceedings and incorporate into these new proceedings the documentation that integrates the preliminary proceedings declared expired by this act.

THIRD: TO NOTIFY this Resolution to the Regional Health Management of Castilla y León (SACYL).

Against this resolution, which concludes the administrative procedure as provided by art. 114.1.c) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, and in accordance with the provisions of arts. 112 and 123 of the aforementioned Law 39/2015, of October 1, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of article 25 and section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in article 46.1 of the aforementioned Law.

907-091222

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